

**State of Vermont
Allied Mental Health**

In re: Amanda Gautreaux
License Number: 097.0134757 & 068.0135938
Docket Number: 2022-262 & 2022-263

Order to Remove Conditions

On July 18, 2024, the Board of Allied Mental Health considered Amanda Gautreaux's request for Removal of Conditions imposed on her license pursuant to a Board Order effective June 19, 2023, under Docket Numbers 2022-262 & 2022-263. The conditions included compliance continuing education, paying an administrative penalty and monthly supervision reports. Ms. Gautreaux has met all the conditions. After review of the compliance file, the State does not object to removal of all conditions.

Order:

The Board of Allied Mental Health hereby removes all conditions from Amanda Gautreaux's license to practice as a Non-Licensed & Non-Certified Psychotherapist and Licensed Clinical Mental Health Counselor.

Vermont Office of Professional Regulation

DocuSigned by:

Tammy Austin

02A6CB6945D04F1...

Board Chair

Date:

7/22/24

Date of Entry: *7 / 23 / 24*



Hoping and Coping Counseling

Amanda Gautreaux, MA
Rostered Psychotherapist

802-365-1751

HopingandCopingCounseling@Protonmail.com

To Whom it May Concern:

Please accept this letter as my petition to The VT Board of Mental Health to release me from the conditions of my stipulated agreement on June 19, 2024. I have also submitted all required documentation to Ms. LaFaille to be submitted for Board approval for licensure and am hopeful to have that occur in the same meeting.

With Gratitude,

Amanda Gautreaux, MA C-ISTT

Pain is real, but so is hope - anonymous

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	Docket Nos. 2022-262
Amanda Gautreaux	)	2022-263
License No. 097.0134757	)	

MODIFICATION STIPULATION AND CONSENT ORDER

STIPULATION

NOW COMES the State of Vermont, by and through State Prosecuting Attorney Jennifer B. Colin, and Respondent Amanda Gautreaux, who hereby stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by rostered non-licensed and non-certified psychotherapists pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 78; the Administrative Rules of the Board of Nursing ("ARBN"); and the Administrative Rules of Practice of the Office of Professional Regulation.

Stipulated Facts

1. Amanda Gautreaux ("Respondent") of Townshend, Vermont is registered on the State of Vermont Roster of Non-Licensed and Non-Certified Psychotherapists under license number 097.0134757. The State issued the registration on March 5, 2020, and it expires November 30, 2024.
2. In June 2023, Respondent was disciplined by the Board for violations relating to boundary issues with two clients and a HIPAA violation with one of those clients. *See* Stipulation and Consent Order ("Order"), attached hereto as Attachment 1.
3. The Order allowed Respondent to continue practicing subject to various conditions for a minimum of one year. To date, Respondent has complied with all conditions.
4. Also in the Order, the Board assessed an administrative penalty in the amount of \$1,500.00, which was to be paid within 180 days. *See* Attachment 1 at p.11, Sec.B. The payment is due December 19, 2023.
5. Respondent has requested a modification of the Order to allow her additional time to pay the penalty. The State does not oppose Respondent's request.

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Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

Understandings

6. Respondent acknowledges that the facts above are true and that the conditions set out in the Consent Order below are appropriate and necessary to protect the public.
7. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Modification Stipulation and Consent Order shall be null and void.
8. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a contested hearing.
9. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
10. Respondent is not under the influence of any drugs or alcohol at the time Respondent signs this Modification Stipulation and Consent Order.
11. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Modification Stipulation and Consent Order.
12. Respondent voluntarily waives Respondent's right to a contested hearing before the Board and waives any right to appeal from this Modification Stipulation and Consent Order.
13. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

A. The Board of Allied Mental Health Practitioners hereby **MODIFIES** the Stipulation and Consent Order entered June 19, 2023 as follows:

1. Section B on Page 11 Regarding Payment of Penalty. Section B on Page 11 of the Order shall be modified to state:

The Board hereby **ASSESSES AND ADMINISTRATIVE PENALTY** IN THE AMOUNT OF ONE THOUSAND, FIVE HUNDRED (\$1,500.00) against Respondent. *This penalty shall be paid on or before March 20, 2024.*

B. All other provisions of the Order shall remain in full force and effect.

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Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

AGREED TO:

Dated: 12/12/2023

By:

STATE OF VERMONT
SECRETARY OF STATE

DocuSigned by:

Jennifer B. Colin

Jennifer B. Colin
Prosecuting Attorney

Dated: 12/11/2023

By:

RESPONDENT

DocuSigned by:

Amanda Gautreaux

Amanda Gautreaux

APPROVED AND SO ORDERED:

Dated: 1/5/24

By:

VERMONT BOARD OF ALLIED
MENTAL HEALTH PRACTITIONERS

DocuSigned by:

Tammy Austin

Chairperson

Date of Entry: 1/5/24

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Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
Amanda Gautreaux) **Docket Nos. 2022-262**
License No. 097.0134757) **2022-263**

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COMES the State of Vermont, by and through State Prosecuting Attorney Jennifer B. Colin, and Respondent Amanda Gautreaux, who hereby stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Non-Licensed and Non-Certified Psychotherapists ("NNP"); issue warnings or reprimands, suspend, revoke, limit, condition, deny, or prevent the renewal of licenses if, after disciplinary hearing, it finds that Respondent has engaged in unprofessional conduct. 3 V.S.A. §§129, 129a; 26 V.S.A. Chapter 65; and the Administrative Rules for the Board of Allied Mental Health Practitioners, and the Rules of the Vermont Office of Professional Regulation.

Statement of Facts

2. Amanda Gautreaux ("Respondent") of Townshend, Vermont is registered on the State of Vermont Roster of Non-Licensed and Non-Certified Psychotherapists under license number 097.0134757. The State issued the registration on March 5, 2020 and it expires November 30, 2024.
3. Within the last year, Respondent also submitted an application to OPR to become a Licensed Clinical Mental Health Counselor in Vermont.

Boundary Issues with Client 1

4. In 2020, Respondent worked as a therapist for Health Care and Rehabilitation Services of Vermont ("HCRS" or "Facility 1"), a facility that provides mental health and substance abuse services in Vermont.
5. From February through July of 2020, Respondent provided individual therapy to L.C. ("Client 1"), a 19-year-old client diagnosed with schizoaffective disorder - bipolar type and posttraumatic stress disorder. Client 1 was also a self-harm risk.

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Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

6. During the time she provided therapy to Client 1, Respondent engaged in a texting relationship with Client 1 outside of scheduled therapy appointments and normal business hours.
7. In multiple texts, Respondent referred to Client 1 as "honey."
8. Respondent shared personal details with Client 1 in their texting relationship, including that Respondent was breaking up with her romantic partner, that Respondent likes to "get fucked up" in "off hours," and that it was hard for Respondent to "maintain appropriate boundaries when I'm fucked up."
9. Client 1's foster parent took Client 1's phone away and discovered the texts between Respondent and Client 1. Client 1's foster parent then engaged with Respondent by texting Respondent using Client 1's phone.
10. In texting with Client 1's foster parent when the foster parent had Client 1's phone, Respondent blamed Client 1 for the lack of boundaries in the relationship and accused Client 1 of pushing her limits and not respecting boundaries by contacting Respondent on social media and through texting at all hours.
11. Respondent texted to Client 1's foster parent while the foster parent had Client 1's phone that: Client 1 was extremely fragile; any service provided by Respondent outside of a regular therapy appointment was out of the goodness of Respondent's heart; Client 1 does not take "no" for an answer; and the foster parent was "the one causing the problem here."
12. Once Client 1 had her cell phone back from her foster parent, Client 1 wrote Respondent a long text expressing: feelings that she [Client 1] was the problem for everyone who tried to help her; suicidal thoughts; feelings that no one wanted her; belief that she was a burden to Respondent; and apologizing for causing problems for Respondent and for not being "good enough"
13. Respondent texted Client 1 in response, including: "I'm just not even sure what the issue was and then [parent] was ripping into me;" "Well I'm very concerned about the safety of my job;" "I never should have told you anything about my life;" "I lose sleep because I worry about my lack of boundaries with you and how it might affect my career;" "I've bent over backwards to support you as best I can. You don't always make that easy."
14. Respondent also texted to Client 1:

I like being here for you and I'm so happy with the progress you've made with self harm. I don't mind being available to you. But at times I'm not available. I use alcohol and Marijuana. I'm well within my rights to do so. And when you message me during those times, I'm not responding in a professional manner and it puts me in a difficult position. So rather than beat around the bush, I've been honest with you. I've never dismissed you or your needs during regular work hours....

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I feel like you've both backed me into a corner where I'm left defending myself and I'm very uncomfortable. If I had had an issue with our relationship that I felt was unmanageable I would have addressed it.

15. When Client 1 responded by expressing the desire to self-harm and stop living, Respondent advised Client 1, "If you're feeling suicidal you should call crisis" and also suggested that Client 1's foster parent "seems to want to help."
16. Respondent also texted to Client 1 that Respondent was high when texting Client 1's foster parent, was trying to save her job, and that the situation has been one of the most awful moments in her career.
17. Respondent did not document the texts she exchanged with Client 1.
18. In August 2020, Respondent resigned from Facility 1.
19. In March 2021 when interviewed by OPR Investigator Menard, Respondent stated that she was taking full responsibility for the situation, that she had twelve years of clinical experience, and that she had not previously encountered a similar situation.

Boundary Issues with Client 2

20. In 2021, Respondent worked as a therapist for PATH Integrated Healthcare in Brattleboro, Vermont ("Facility 2").
21. In March, April and May of 2021, Respondent provided individual in-person therapy to K.B. ("Client 2"), a client with diagnoses of generalized anxiety disorder and persistent depressive disorder.
22. In session, when Client 2 shared an experience about the death of a child, Respondent began crying and shared personal information about her own loss of an infant child.
23. In session, when Client 2 shared concerns about the relationship with her partner, Respondent became upset, shared that she [Respondent] was a survivor of domestic violence and showed Client 2 her tattoo related to being a survivor of domestic violence.
24. In session, Client 2 shared with Respondent that Client 2 had talked with a worker from another agency about concerns involving the relationship between Client 2 and her partner. The worker reminded Client 2 that the worker was a mandated reporter and if Client 2 reported abuse involving or witnessed by the couple's children, the worker would be obligated to report to Vermont Department for Children and Families ("DCF").
25. In response to Client 2 telling Respondent the information above, Respondent expressed frustration to Client 2 because Respondent believed that the agency worker's reminder about mandatory reporting obligations stifled Client 2 from sharing information.

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26. In session, Client 2 shared with Respondent a situation relating to a family and their child who lived close to Client 2. In response, Respondent informed Client 2 that Respondent knew the family and the child, disclosed details about substance use in the family, discussed the child's diagnosis, shared that Respondent had a family member accused of abusing someone in the family being discussed, and shared that Respondent had considered making a DCF report pertaining to the same family.
27. In May of 2021, Respondent engaged in a texting relationship with Client 2 outside of scheduled appointments and outside of normal business hours.
28. In texts, Client 2 shared with Respondent that Client 2 had been arrested for domestic violence after hitting her partner and that she had to go to court.
29. Respondent volunteered, without being asked by Client 2, to go to court with Client 2, testify for Client 2, told Client 2 to take photos of her injuries, and told Client 2 that she [Respondent] wanted to be there for Client 2 even if the charges were dropped.
30. Respondent told Client 2 that Client 2 did nothing wrong.
31. Client 2 did not accept Respondent's offers to assist Client 2 with the court process.
32. Client 2 texted Respondent the outcome of the court process, which was an aggravated disorderly conduct conviction and a fine. When Client 2 acknowledged that it was her own fault and that she had to bear the consequences of her own actions, Respondent insisted it was not Client 2's fault and stated:

It's not your fault. You were [cornered]. Do not accept victim shaming. What are HIS consequences? It's my opinion that you need to file for a restraining order.

33. Respondent further opined that Client 2's partner as engaged in "classic manipulation. He's using the fact that you were impaired to his advantage. It doesn't matter if you were intoxicated." Respondent then encouraged Client 2 to contact a women's domestic violence organization.
34. Client 2 then terminated the therapy relationship with Respondent via text and asked Respondent not to contact her.
35. In response, Respondent texted Client 2 about two hours later to advise Client 2 regarding further services from a different provider and apologized for making Client 2 uncomfortable.

Independent Evaluation

36. After the Specification of Charges was filed in this case, Respondent voluntarily engaged in a pre-settlement independent evaluation for alcohol/substance use and mental health.

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37. The evaluator concluded that Respondent is presently fit to practice and made numerous recommendations.
38. The evaluator recommended that Respondent have one-on-one supervision for a minimum of one year after Respondent obtains "independent licensure."
39. Along with other diagnoses, the evaluator diagnosed Respondent with mild alcohol dependency.
40. The evaluator recommended that Respondent focus on completing thorough and timely documentation within one month of providing services.

Violation One: 3 V.S.A. §129a(b)(1) Performance of unsafe or unacceptable patient or client care.

41. Paragraphs 2 through 35 above are incorporated herein.
42. Vermont law requires Non-Licensed and Non-Certified Psychotherapists to practice competently by providing safe and acceptable client care.
43. Paragraphs 2 through 19 above demonstrate that Respondent failed to provide safe and acceptable client care to Client 1 by failing to observe appropriate boundaries and blaming the client for the lack of appropriate boundaries in the therapeutic relationship.
44. Paragraphs 20 through 35 above demonstrate that Respondent failed to provide safe and acceptable client care to Client 2 by failing to observe appropriate boundaries.
45. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Violation Two: 26 V.S.A. §4093(a)(7) Entering an additional relationship with a client that might impair the psychotherapist's objectivity or otherwise interfere with his or her professional obligations.

46. Paragraphs 2 through 35 above are incorporated herein.
47. As a Non-Licensed and Non-Certified Psychotherapist, Respondent must refrain from entering an additional relationship with a client that might impair her objectivity or otherwise interfere with her professional obligations.
48. Paragraphs 2 through 19 above demonstrate that Respondent entered an additional relationship with Client 1 that impaired Respondent's objectivity or otherwise interfered with her professional obligations.
49. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 26 V.S.A. §4093(a)(7).

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Violation Three: 3 VSA 129a(b)(2) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes failure to conform to the essential standards of acceptable and prevailing practice.

50. Paragraphs 2 through 35 above are incorporated herein.

51. The Administrative Rules of the Board of Allied Mental Health Practitioners ("ARAMH") provide that the ethical codes of the National Board for Certified Counselors ("NBCC") and the American Counseling Association ("ACA") establish the standard of practice and fitness within the Allied Mental Health professions. *See* ARAMH Rule 6.6.

52. Essential standards of acceptable and prevailing practice provide that "the primary responsibility of counselors is to respect the dignity and promote the welfare of clients." *See* ACA Code of Ethics, Standard A.1.a.

53. Paragraphs 2 through 19 demonstrate that Respondent failed to adhere to essential standards of acceptable and prevailing practice when she engaged in text message exchanges with a client at risk of self-harm and blamed the client for lack of boundaries in the therapeutic relationship and expressed that Respondent was primarily concerned about losing her own job because of the text exchanges with Client 1.

54. Essential standards of acceptable and prevailing practice require that "counselors consider the risks and benefits of extending current counseling relationships beyond conventional parameters....In extending these boundaries, counselors take appropriate professional precautions such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired and no harm occurs." *See* ACA Code of Ethics, Standard A.6.b. Such boundary extensions must be documented and, when unintentional harm occurs, the counselor must attempt to remedy such harm. *See* ACA Code of Ethics, Standard A.6.c.

55. Paragraphs 2 through 35 demonstrate that Respondent failed to adhere to essential standards of acceptable and prevailing practice when she extended the counseling relationships with Clients 1 and 2 beyond conventional parameters by texting with them outside of therapy sessions concerning therapeutic/mental health issues without: considering the risks and benefits, obtaining informed consent, engaging in supervision, and documenting.

56. Essential standards of acceptable and prevailing practice require counselors to protect confidential client information and to only disclose information with appropriate consent or sound legal or ethical justification. *See* ACA Code of Ethics, Standard B.1.c.

57. Paragraphs 2 through 19 demonstrate that Respondent failed to adhere to essential standards of acceptable and prevailing practice when she failed to protect and improperly disclosed Client 1's confidential information by engaging with Client 1's parent regarding Client 1's mental health via text message without a release.

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89 Main Street
3rd Floor
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58. Essential standards of acceptable and prevailing practice require counselors to be aware of, and avoid imposing onto clients, their own values, attitudes, beliefs, and behaviors. *See ACA Code of Ethics, Standard A.4.b.*
59. Paragraphs 2 through 19 demonstrate that Respondent failed to adhere to essential standards of acceptable and prevailing practice when she lacked awareness of and imposed onto Client 1 her own values, attitudes, beliefs and behaviors regarding alcohol and marijuana use.
60. Paragraphs 20 through 35 demonstrate that Respondent failed to adhere to essential standards of acceptable and prevailing practice when she lacked awareness of and imposed onto Client 2 her own values, attitudes, beliefs and behaviors regarding domestic violence, as well as Client 2's criminal charge and subsequent conviction.
61. The acts, omissions, and/or circumstances described above constitute grounds for discipline because Respondent has committed unprofessional in violation of 3 V.S.A. §129a(b)(2).

Violation Four: 3 V.S.A. §129a(a)(26) Failure to maintain professional boundaries.

62. Paragraphs 2 through 35 above are incorporated herein.
63. In Vermont, a Non-Licensed and Non-Certified Psychotherapist must maintain professional boundaries.
64. Paragraphs 2 through 35 above demonstrate that Respondent failed to maintain professional boundaries with Clients 1 and 2.
65. The acts, omissions, and/or circumstances described above constitute grounds for discipline because Respondent has engaged in unprofessional conduct in violation of 3 V.S.A §129a(a)(26).

Violation Five: 3 V.S.A. §129a(a)(3) Failure to comply with provisions of federal or State statutes or rules governing the practice of the profession, incorporating 45 C.F.R. §164.502.

66. Paragraphs 2 through 35 above are incorporated herein.
67. The Health Insurance Portability and Accountability Act of 1996 ("HIPAA") is a federal law which prohibits a health care provider from accessing or using a patient's protected health information for a purpose other than treatment, payment, or health care operations of the Facility, except when authorized by the individual or as required by law. *See 45 C.F.R. §164.502.*
68. Respondent is subject to HIPAA as a health care provider in her capacity as a psychotherapist. *See 45 C.F.R. § 160.103.*

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69. Paragraphs 2 through 19 demonstrate that Respondent violated federal law by knowingly communicating with Client 1's parent regarding Client 1's confidential mental health information without proper authorization or permitted purpose.
70. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has engaged in unprofessional conduct in violation of 3 V.S.A. §129a(a)(3).

Understandings

71. Respondent admits that the facts above are true and that the conditions below are necessary to protect the public.
72. Respondent understands that the Board must review and accept the terms of the Order set forth below and that if the Board rejects all or any portion of the Order, then this entire document shall be null and void.
73. Respondent specifically waives any claim that any disclosures made to the Board during the Board's review of this agreement prejudice Respondent's right to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a hearing on the merits before the same Board.
74. Respondent has read and reviewed this document fully and agrees that it contains the entire agreement between the parties.
75. This Stipulation and Consent Order is entered into voluntarily by Respondent after the opportunity to consult with legal counsel. Respondent has not been coerced by anyone into signing this Stipulation and Consent Order.
76. Respondent voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
77. Respondent is of sound mind and is not under the influence of drugs or alcohol when signing this Stipulation and Consent Order.
78. Respondent agrees that the Order set forth below may be entered by the Board.
79. Respondent understands that she is responsible for all compliance costs associated with this Stipulation and Consent Order.

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Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board hereby **REPRIMANDS** Respondent's registration on the Roster of Non-Licensed and Non-Certified Psychotherapists.

B. The Board hereby **CONDITIONS** Respondent's registration on the Roster of Non-Licensed and Non-Certified Psychotherapists for a **MINIMUM OF ONE (1) YEAR**, commencing on the date of entry. The **CONDITIONS** shall be as follows:

1. Re-issuance of License. Upon the commencement of these, Respondent's registration shall be labeled "conditioned."
2. Length of Time of Conditions Imposed. The conditions shall remain in place until Respondent has completed all conditions ordered. Respondent shall be subject to the conditions until Respondent completes a minimum of one (1) year of supervised psychotherapy practice in which Respondent works at least forty (40) hours per month. Respondent shall be prohibited from working more than forty (40) hours per week.
3. Monitoring. The Office of Professional Regulation, through the Enforcement Case Manager, shall be responsible for monitoring Respondent's compliance with these Conditions. All reports or correspondence regarding compliance with these conditions shall be submitted to the Case Manager in accordance with the Conditions listed below.
4. Required Coursework: Respondent shall, within one hundred and twenty (120) days following the entry of this Order, at her own expense, complete nine (9) hours of pre-approved online courses, which must include education on ethics, boundaries, dual relationships, and risk management. For pre-approval, Respondent must submit to the Case Manager the name of each course, the name of the sponsoring organization, and a description of the course content and/or syllabus. Respondent must achieve a passing score on the post-tests for the courses, and submit test results, workbooks completed in full and in a satisfactory manner, and certificates of completion to the Office of Professional Regulation.

Failure to complete the courses within the prescribed timeframe shall constitute a violation of this Order. The coursework may not be counted toward any continuing education requirement of licensure.

5. Notification to Employers/Educational Programs. Respondent shall provide a copy of this Stipulation and Consent Order to all employers in any current or future setting in which Respondent practices in the mental health field and inform them of Respondent's conditional registration status. Within ten (10) days of the date of entry of this Consent Order or of any subsequent mental health employment, Respondent shall cause Respondent's immediate supervisor to submit to the Board an employer agreement form approved by the Board, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.

In the event Respondent is attending an educational program in the mental health field which has a clinical portion that involves actual client care, Respondent shall provide a copy of the Stipulation and Consent Order to the Program Director. Respondent shall cause the Program Director to submit to the Board an agreement form approved by the Board, acknowledging receipt of the Stipulation and Consent Order and the ability of the program to comply with the conditions in the Consent Order during clinical experience.

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89 Main Street
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6. Reports from Employers/Program Director. Within one (1) month of the date of entry or within one (1) month of the commencement of mental health/counseling employment other than self-employment and monthly thereafter, Respondent shall cause every mental health employer Respondent has worked for during the month to submit to the Board an evaluation of Respondent's work performance and attendance during that month. In the event Respondent is attending an education program in the mental health field, Respondent shall cause the Program Director to submit to the Board, on a monthly basis, a written evaluation of Respondent's performance and attendance. These reports shall be submitted in writing on forms issued by the Board. All employer reports shall indicate satisfactory performance (i.e., consistently meeting all standards of nursing practice) and attendance.
7. Practice Under Supervision. Respondent's practice as a psychotherapist shall be supervised by a pre-approved LCMHC or other pre-approved mental health professional licensed and in good standing in Vermont. In the event Respondent is not employed by an agency that can provide such supervision, Respondent shall, at her own expense, engage a pre-approved supervisor ("Supervisor"), who is a Vermont-licensed LCMHC, PhD Psychologist or other licensed and pre-approved mental health practitioner, to provide supervision regarding profession-specific issues or concerns that arise in Respondent's practice, bearing in mind rules and regulations regarding patient privacy. Supervision must include discussions about boundaries, ethics, documentation, as well as the therapeutic rationale for various clinical decisions, such as communications with clients outside of appointments, dual relationships, ethical boundaries and other ethical and clinical issues. Respondent's consultation with her Supervisor shall take place no less than once per week by videoconference (or similar) or in person. The pre-approved Supervisor shall provide monthly reports to the Case Manager identifying when each supervision meeting occurred, how long it lasted, and generally identifying the profession-specific issues discussed. The Supervisor shall also report any ethical violations, boundary transgressions, or other practice issues or concerns.

For pre-approval of the Supervisor, Respondent shall be responsible for locating a Supervisor willing to provide supervision and provide the proposed supervisor with a copy of this Stipulation and Consent Order. Respondent shall send the name, contact information, credentials, and curriculum vitae of the proposed Supervisor to the Enforcement Case Manager as part of the pre-approval process. If the Supervisor is not approved, Respondent shall repeat the process of locating a proposed evaluator, providing this Stipulation and Consent Order, and sending the required information to the Case Manager for pre-approval.

8. Types of Employment Prohibited. Respondent shall not work in a supervisory role.
9. Interview with the Board or its Designee. Respondent shall appear in person for interviews with the Board or its designee upon request.
10. Out-of-State Practice. Before any out-of-state practice can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval from the Board or its designee. The Board will approve out-of-state practice so long as

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Respondent can still comply with the provisions of this Consent Order. If Respondent receives discipline on a license held in another state during the conditioned period, Respondent must inform the Board of such, in writing, within ten (10) days of receiving such discipline.

11. Notification of Place of Employment/Personal Address/Telephone Number. Within ten (10) days of the date of entry of this Consent Order, Respondent shall notify the Board, in writing, of Respondent's current place of employment, personal address, and telephone number. Respondent shall further notify the Board, in writing, within forty-eight (48) hours of any change in employment (including resignation or termination), personal address, or telephone number.
 12. Notification to Other States. In the event that Respondent is licensed in any other state(s), Respondent must inform the licensing board of the state(s) in which Respondent is licensed of the conditional status of Respondent's Vermont Roster registration within thirty (30) days of the date of entry of this Order.
 13. License Renewal. This Order does not automatically extend Respondent's registration on the Roster. Respondent must comply with the requirements for registration renewal.
 14. Costs. Respondent shall bear all costs of complying with this Consent Order.
 15. Violation of this Order. If Respondent violates this Order the Board, after giving Respondent notice and an opportunity to be heard, may rescind or modify this Order and impose additional appropriate disciplinary actions. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.
 16. Completion of Conditional License Period. Upon successful completion of the minimum conditioned period, Respondent shall submit a petition to the Docket Clerk to remove any and all conditions from Respondent's license. The State will assent to or oppose Respondent's petition. The Board will conduct a hearing if necessary. Respondent bears the burden and must present proof that Respondent has fully complied with the terms of this Order and these conditions are no longer necessary to protect the public.
- B. The Board hereby **ASSESES AN ADMINISTRATIVE PENALTY IN THE AMOUNT OF ONE THOUSAND, FIVE HUNDRED DOLLARS (\$1,500.00)** against Respondent. This penalty is to be paid within one hundred and eighty (180) days of the date of entry of this Order.
- C. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.
- D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

STATE OF VERMONT

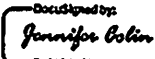


Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

Dated: 6/13/2023

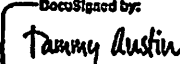
STATE OF VERMONT
SECRETARY OF STATE
By: 
Jennifer B. Colin
Prosecuting Attorney

Dated: 6/13/2023

RESPONDENT
By: 
Amanda Gautreaux

APPROVED AND SO ORDERED:

Dated: 6/19/2023

VERMONT BOARD OF ALLIED
MENTAL HEALTH PRACTITIONERS
By: 
Chairperson

Date of Entry: 6/19/2023

STATE OF VERMONT



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